

3.

CASE #	CASE NAME	HEARING NAME
CVRI2304886	STEVENSON VS TORRES	MOTION TO COMPEL ORDER COMPELLING RESPONSES TO SPECIAL INTERROGATORIES AND FOR MONETARY SANCTIONS IN THE AMOUNT OF \$352.28

Tentative Ruling:

The unopposed motion is granted. Plaintiff Capucine Stevenson is ordered to provide verified responses to the special interrogatories within twenty (20) days of this Court's signed order or notice of ruling, whichever is sooner. Court further imposes a monetary sanction against Plaintiff Capucine Stevenson and counsel of record, jointly and severally, in the amount of \$352.28, to be made payable through defense counsel Keith L. Shoji & Associates within thirty (30) days of service of this Court's signed order or notice of ruling, whichever is sooner.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506366	DOE VS RIVERSIDE UNIFIED SCHOOL DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

First cause of action – negligence

The Government Claims Act is “a comprehensive statutory scheme that sets forth the liabilities and immunities of public entities and public employees for torts.” (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 969, fn. 5.) Under the Act, liability of a public entity may be direct or derivative. (*McCarty v. State of California Dept. of Transp.* (2008) 164 Cal.App.4th 955, 975.)

A public entity such as the District can only be held directly liable for violation of a duty imposed by statute or law. The Act declares that except as otherwise provided by statute, “a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, §815, subd. (a).) This means that “there is no [governmental] entity liability, unless it is established by statute.” (*Bradford v. State of California* (1973) 36 Cal.App.3d 16, 19.) “[T]here is no common law tort liability for public entities in California; such liability is wholly statutory. [Citations.] [Citations.]” (*Ibid.*) As such, the District may only be derivatively or vicariously liable for negligence.

A public entity is ordinarily vicariously liable “for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, §815.2(a).) However, no liability will attach if the employee’s act or omissions do not give rise to a cause of action against the employee or if the employee is immune from liability. (*Strong v. State* (2011) 201 Cal.App.4th 1439, 1448.) Here, Plaintiff has sufficiently alleged a cause of action for negligence against the District based on vicarious liability. “The elements of a cause of action for negligence are (1) a legal duty to use reasonable care, (2) breach of that duty, and (3) proximate [or legal] cause between the breach and (4) the plaintiff’s injury....’ [Citation.]” (*Phillips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1139.) “Absent a legal duty, any injury is an injury without actionable wrong.” (*Romero v. Superior Court* (2001) 89 Cal.App.4th 1068, 1078.) A defendant does not owe a legal duty to protect, “unless there exists a special relationship between the defendant and the plaintiff.” (*Doe v. Los Angeles County Dept. of Children & Family Services* (2019) 37 Cal.App.5th 675, 682 (Doe), citing *Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 235.) It is undisputed that “a school district and its employees have a special relationship with the district’s pupils,” giving rise the duty “to use reasonable measures to protect students from foreseeable injury at the hands of third parties acting negligently or intentionally.” (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 870 (C.A).)

Defendant District does not dispute that a duty exists. Rather, it argues Plaintiff fails to allege facts establishing the causation element of his negligence claim. According to the District, Plaintiff’s admittedly did not report the abuse to the District or its employees as he was threatened by the student responsible for the abuse, and before the District could take any corrective actions, Plaintiff’s parents decided to take him out of school. On that basis, the District argues Plaintiff alleges no facts demonstrating any actions or omissions by the District’s employees could have caused his injuries. However, the District misconstrues the nature of Plaintiff’s cause of action for one seeking to hold the District vicariously liable for the abuse itself. Rather, Plaintiff seeks to hold the District vicariously liable for failing to (1) implement and enforce adequate safety policies and procedures to prevent abuse among students, (2) train and instruct teachers, administrators, and staff on how to identify, prevent, and respond to incidents of abuse or threats of harm, and (3) to investigate reports of abuse and take responsible steps to protect Plaintiff, which are duties imposed on District employees under various provisions of the California Education Code and the Code of Regulation. (Ed. Code, §§ 44807, 234, 234.5, 32280, 32288; Cal. Code Reg., tit 5, § 5552) The District’s demurrer does not address the sufficiency of the pleading based on these duties. Here, Plaintiff has alleged he was victimized by another student in an ongoing abuse, which the District (by way of the neglect of its employees) failed to prevent by ensuring proper supervision.

The District argues the FAC’s generalized assertions that the District failed to supervise, train, or implement policies are insufficient to state a cause of action for negligence against the District. Furthermore, the District argues the FAC failed to allege the dates

or number of incidents, the timing of notice, or the circumstance under which the alleged misconduct occurred. However, a cause of action for negligence need not be alleged with the level of specificity demanded by the District. Ordinarily, the complaint is sufficient if it alleges ultimate rather than evidentiary facts, and the plaintiff is required only to set forth the essential facts of the case with “reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550; Code Civ. Proc., §425.10(a).) There is no authority which requires that the “plaintiff must specifically plead, before undertaking discovery, the identity of a government employee whose alleged negligence is made the basis for vicarious liability under section 815.2, and ... such an impracticable rule would be consistent with the legislative intent in enacting that statute. [Citation.] (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872, citing Sen. Legis. Com. com., reprinted at 32 West’s Ann. Gov. Code (1995 ed.) foll. § 815.2, p. 179.) “If the complaint in a negligence case alleges an act or the omission of an act, and the allegation in and of itself sufficient to apprise defendant of [its] negligence, the complaint is sufficient against a general demurrer.” (*Frisvold v. Leahy* (1936) 15 Cal.App.2d 752, 756.)

Therefore, the demurrer is overruled as to the first cause of action.

Second cause of action – breach of mandatory duty

As the District correctly contends, Plaintiff has not alleged the statutory basis to hold the District directly liable for breach of a mandatory duty. Direct liability is governed by Government Code section 815.6. (*Bradford v. State of California* (1973) 36 Cal.App.3d 16, 19.) Government Code section 815.6 contains a three-part test for determining whether liability may be imposed on a public entity: (1) an enactment must impose a mandatory, not discretionary, duty; (2) the enactment must intend to protect against the kind of risk of injury suffered by the party asserting the statute as a basis for liability; and (3) breach of the mandatory duty must be a proximate cause of the injury suffered. (Gov. Code, §815.6; *California v. Superior Court (Perry)* (1984) 150 Cal.App.3d 848, 854.) In order to assert a governmental entity’s liability for injuries resulting from the entity’s breach of a mandatory duty under section 815.6, a plaintiff must specifically allege liability in his or her complaint, and the plaintiff must specifically identify the statute or regulation alleged to create a mandatory duty. (*Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1349.)

Here, Plaintiff failed to identify any statutory enactment imposing a direct mandatory duty upon the District to supervise and to protect Plaintiff from sexual abuse while on school grounds. None of the various provisions of the California Education Code and the Code of Regulation cited by Plaintiff (Ed. Code, §§ 44807, 234, 234.5, 32280, 32288; Cal. Code Reg., tit 5, § 5552) imposes a direct mandatory duty upon District. “[T]he existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty.” [Citation.] (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 803.) Ignoring the plain statutory language of these provisions, Plaintiff relies on *M.W. v. Panama Vista Union School Dist.* (2003) 110 Cal.App.4th 508,

as authority for imposing a mandatory duty against the school district under Education Code section 44807 and Title 5 of Code of Regulations section 5552. However, the court in that case did not discuss liability in the context of a direct liability under Government Code section 815.6. Rather, the court discussed the school district's liability for negligence without specifying whether such liability is direct or derivative.

The demurrer is sustained without leave to amend as to the second cause of action for breach of mandatory duty as Plaintiff identifies no statutory enactment imposing a mandatory duty on which the District can be found directly liable.

Defendant District is ordered to answer within ten (10) days from service of the notice of the order.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506366	DOE VS RIVERSIDE UNIFIED SCHOOL DISTRICT	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

The District moves to strike Plaintiff's prayer for attorney's fees, statutory damages, and expert witness fees.

"[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer." (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) A motion to strike may be brought to strike the portion of a pleading on the grounds that that pleading contains irrelevant, false, or improper matter. (Code Civ. Proc., §436(a).) The grounds for a motion to strike must appear on the face of the challenged pleading or from matter which is judicially noticeable. (Code Civ. Proc., §437(a).) Here, in the absence of an underlying statutory basis, Plaintiff's demand for attorney's fees, expert witness fees, and statutory damages are not supported by the allegations of the FAC. (Code Civ. Proc., §§ 436(a), 431(b) (3).)

Under the "American rule," each party to a lawsuit ordinarily pays its own attorney's fees. (*Tract 19051 Homeowners Assn. v. Kemp* (2015) 60 Cal.4th 1135, 1142.) Attorney fees are allowable as court costs only when authorized by statute or contract, or authorized by "law". (Code Civ. Proc., §§1033.5(a)(10)(A), (B) & (C), 1021, 1032; *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606.) Plaintiff's causes of action alleged against District are based in the tort of negligence. Plaintiff argues attorney's fees are authorized under Code of Civil Procedure section 1021.5. Section 1021.5 ("private attorney general theory") authorizes attorney fees to be granted to a successful party "in any action which has resulted in the enforcement of an important right affecting the public interest...." (Code Civ. Proc., §1021.5.) However, this is an action for damages for injuries Plaintiff personally sustained, not one for pursuing private enforcement of a